

22STCV31468 22STCV31468

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-25

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Case Number: 22STCV31468 Hearing Date: August 25, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

J Cellars Investments LLC

;

Plaintiff,

vs.

HDI Global Insurance

Company

;

Defendant.

Case No.:

22STCV31468

Hearing Date:

August 25, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

for Order Setting Reasonable Fee for Copy of Deposition Transcripts

MOVING PARTY: Plaintiffs J Cellars Investments LLC

and Joseph Bartholomew

RESPONDING

PARTY: Non-Party Express Deposition

Services

Motion for Order

Setting Reasonable Fee for Copy of Deposition Transcripts

The court considered the moving,

opposition, and reply papers filed in connection with this motion.

DISCUSSION

Plaintiffs

J Cellars Investments, LLC and Joseph Bartholomew ("Plaintiffs") move the court

for an order setting the reasonable cost of a copy of a deposition transcript from non-party Express Deposition Services (“EDS”) for a non-noticing party at 20 cents per 100 words or 40 cents per page.

Ordinarily,

the party noticing a deposition bears the cost for transcription of that deposition. (Code Civ. Proc., § 2025.510, subd. (b).) Any other party may obtain a copy of the transcript at that party’s own expense. (Code Civ. Proc., § 2025.510, subd. (c).) A non-noticing party has the right to obtain a copy of a transcript at a “reasonable rate.” (Serrano v. Stefan Merli Plastering Co., Inc. (2008) 162 Cal.App.4th 1014, 1036.) Where there is a dispute over the reasonableness of the rate charged to a non-noticing party, the court may determine the amount of a reasonable fee. (Id. at 1038-39.)

The

court finds that 40 cents per page is a reasonable fee for deposition transcripts to a non-moving party. That fee is in line with the statutory fee schedule for transcripts of court proceedings, which range between 20 and 26 cents per 100 words—which is approximately one half of a page. (Gov. Code, §§ 69950, 69954.) While the transcripts at issue here are deposition transcripts, not court transcripts, the statutory fee schedule is instructive.

ORDER

The court GRANTS

plaintiffs J Cellars Investments LLC and Joseph Bartholomew's motion for order
setting reasonable fee for deposition transcripts.

The court orders

that Express Deposition Services shall charge plaintiffs J Cellars Investments
LLC and Joseph Bartholomew no more than \$0.40 per page for deposition
transcripts where plaintiffs J Cellars Investments LLC and Joseph Bartholomew
were not the noticing parties.

The court orders J

Cellars Investments LLC and Joseph Bartholomew to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 25, 2026

Robert B. Broadbelt III

Judge of the Superior Court